Service Terms

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Welcome to offhrs — summary of key terms

We have worked hard to keep our Service Terms clear and straightforward. In short:

- **The platform.** offhrs provides a localized discovery application (offhrs.app) and a vendor portal (partners.offhrs.app) for in-person creative workshops in Toronto and surrounding areas, and (where available) for purchasing physical art and craft goods through the Artist Marketplace.
- **Our intermediary role.** Workshops and Marketplace goods are owned, fulfilled, and operated by independent third-party partners ("Vendors") — not by us. offhrs acts as a technology intermediary and limited commercial payment collection agent. We do not warehouse or ship Marketplace parcels.
- **The contractual split.** When you purchase a workshop seat or Marketplace item, you enter into a binding agreement directly with the Vendor. offhrs is not a party to that contract.
- **Account guidelines.** offhrs may suspend or deactivate consumer or vendor accounts if there is a violation of these Terms, evidence of payment fraud, or abusive behaviour toward our community.

1. Definitions

- **"Booking"** — a confirmed reservation for a single or recurring workshop session hosted by a Vendor and processed through the offhrs engine.
- **"Refund / cancellation policy"** — the refund window (e.g. 24 or 48 hours before the workshop start time) configured by a Vendor on their dashboard. Consumers may self-serve cancellations and refunds inside the app when the workshop is outside that window. The Platform minimum is 24 hours.
- **"Consumer"** — you, the end user searching or booking workshops, or buying Marketplace goods, through the mobile or web app.
- **"Linked listing"** — a workshop listing that is synced from a Vendor's online store (such as a Shopify store) or added by offhrs with a link to the Vendor's own site, where booking and payment are completed on the Vendor's site rather than through offhrs.

- **"Scheduling engine"** — offhrs' proprietary date-parsing, slot-rendering, and conflict-blocking system used to manage local event availability and reconcile slot counts on booking, cancellation, refund, and account deletion.
- **"No-show policy"** — the operational directive under which a Vendor may charge up to 100% of the booking total if a student fails to attend at the scheduled time and location.
- **"SaaS subscription"** — the recurring monthly fee paid by Vendors to maintain their dashboard on partners.offhrs.app. Paid plans: $29 CAD/month (Lite), $29 CAD/month (Shopify Sync via Shopify Billing), or $39 CAD/month (Pro). Stripe-billed plans include 13% Ontario HST; Shopify Sync is billed by Shopify. Marketplace Only has no monthly SaaS fee.
- **"Marketplace Order"** — a purchase of physical goods from a Vendor through the Artist Marketplace (Shop) in the offhrs apps, including shipped and local-pickup fulfillment.
- **"Vendor / Partner"** — the creative studio, independent artisan, or business hosting the workshop or class, or selling Marketplace goods.

2. Our relationship & scope

offhrs provides software that streamlines marketplace mechanics. We do not own, lease, operate, or staff any physical workshop studios, nor do we handle materials (clay, flora, culinary ingredients, and so on).

When you complete a checkout through offhrs (a workshop booking or a Marketplace Order), offhrs acts as a **limited commercial agent** on behalf of the Vendor: your payment satisfies your debt to that Vendor. Legal fulfilment of the class, and the sale, condition, and delivery of Marketplace goods, rest entirely with the Vendor.

Linked listings. For a Linked listing, you book and pay on the Vendor's own site. offhrs does not process that payment, is not a party to that transaction, and is not the Vendor's agent for it. The Vendor's price, availability, refund and cancellation terms, and terms of sale apply. Listing details may be out of date, so confirm them with the Vendor before booking.

3. Financial transactions, deposits, and processing fees

All monetary conversions on the Platform are processed via Stripe.

3.1 Currency & local taxation

- All transactions are processed in Canadian dollars ($CAD).
- **SaaS billing.** For Stripe-billed plans, offhrs adds 13% HST to the monthly vendor fee, filing under our CRA Business Number **717928832 RT 0001**.

- **Workshop billing.** Vendors configure workshop GST/HST status in their dashboard. Where the Vendor is registered and workshop tax is collected into their Stripe Connect account, remittance of that workshop tax remains the Vendor's responsibility unless we notify you otherwise in writing.
- **Marketplace billing.** For Artist Marketplace goods, Vendors configure GST/HST status in their dashboard. Where the Vendor is registered, Marketplace tax is collected into their Stripe Connect account and remittance remains the Vendor's responsibility (same as workshop tickets). offhrs does not collect Marketplace GST/HST for unregistered Vendors. Buyer-paid shipping is held to fund prepaid Canada Post labels and is not Vendor merchandise earnings. See the Marketplace Seller Addendum and Terms of Use.

3.2 Processing rules

Stripe's standard card-processing fee (currently **2.9% + CA$0.30** per successful transaction for domestic cards, as published by Stripe at stripe.com/en-ca/pricing) applies to the gross transaction sum cleared from the consumer's card. International cards and other payment methods may incur additional fees under Stripe's published pricing. This base includes any tax, delivery fees, and material margins added by the Vendor.

These processing fees are borne by the Vendor and are deducted from the Vendor's net payout. offhrs does not mark up, retain, or otherwise share in Stripe's processing fees. For Marketplace sales, offhrs also charges a separate 3% platform fee on the item subtotal (excluding tax and shipping postage).

3.3 Refunds

When a consumer self-serves a workshop refund or a Vendor issues a workshop refund from the dashboard, offhrs creates a Stripe refund against the original PaymentIntent, updates the booking status to *refunded*, and reconciles the affected event's available slots so capacity is restored. The full amount paid by the consumer (including applicable tax) is returned to the consumer's original payment method.

For Marketplace Orders, you may cancel for a full refund from **Profile** → **Orders** before carrier First Scan or before completed pickup when permitted by the Platform and carrier label-void rules. The Vendor (or offhrs, for example after a missed ship-by window) may also refund in that window. When a Marketplace Order is refunded, the full amount you paid (including shipping and applicable tax) is returned to your original payment method. After First Scan, Platform cancellation of the paid order is generally blocked; see Section 3.5 for quality claims.

Stripe processing fees on refunded transactions are non-refundable by Stripe and remain the responsibility of the Vendor. When a refund is issued, the original payout to the Vendor's Stripe Connect Express account is reversed in full, and the Stripe processing fee charged at the time of the original transaction is netted against the Vendor's balance. As a result, a refunded booking or pre-scan Marketplace order will typically show a small negative impact on the

Vendor's balance equal to the original Stripe processing fee. Vendors are encouraged to factor this risk into their configured refund window.

3.4 Chargebacks and payment disputes

If you have a concern about a charge, you agree to contact offhrs at hello@offhrs.app (and, where appropriate, the Vendor) before initiating a chargeback, payment reversal, or similar dispute with your bank or card issuer. We will work in good faith to investigate and resolve legitimate issues under these Terms and the Vendor's stated policies.

If you initiate a chargeback or payment dispute for a transaction that was validly processed under these Terms — including where a workshop was delivered or made available as booked, a cancellation or refund policy was correctly applied, Marketplace goods were fulfilled or shipped with tracking as described, or a Partner subscription fee was properly charged — you may be liable for the disputed amount, associated Stripe dispute fees, and reasonable administrative costs. offhrs may recover such amounts by reversing related credits, offsetting amounts owed, charging a payment method on file where authorized, and/or limiting or suspending your account.

- **Host and seller policies.** Each Vendor sets workshop cancellation terms and may set Marketplace buyer's-remorse return policies (disclosed at purchase). Damaged or significantly not-as-described goods are subject to platform minimum rules described in the Marketplace Seller Addendum.
- **How disputes are handled.** Payments are routed to the Vendor's Stripe Connect account (with Marketplace shipping held on the platform as described above). Dispute fees and reversed amounts are handled under Stripe Connect rules and may affect the Vendor's payout balance; Vendors authorize offhrs to claw back amounts as set out in the Terms of Use.

3.5 Marketplace Orders, tracking, and quality claims

- You can view Marketplace purchases under **Profile** → **Orders** in the mobile app. Tracking appears after the carrier First Scan when available.
- For damaged goods or items significantly not as described, report the issue within **14 days** of delivery or pickup using in-app reporting where available, or email hello@offhrs.app with photos. Buyer's-remorse returns may be declined if the listing disclosed a no-remorse-returns policy.
- offhrs does not warehouse goods and does not operate a platform shipping-protection guarantee. Lost-in-transit coverage follows the carrier insurance purchased for the label.
- Marketplace goods are sold by the Vendor and ship within Canada only. The Vendor's ship-by window (5 business days from payment by default, unless a longer made-to-order window is disclosed at checkout) applies. Carrier delivery estimates are not guaranteed.

4. Scheduling engine integrity

- **Accuracy.** Vendors must keep their dashboard schedule accurate to prevent double-booking.
- **Conflicts.** If a Vendor fails to log time flags properly or enters invalid dates, offhrs is not liable for parsing errors or downstream consumer schedule conflicts.
- **Fairness.** Systematically altering availability to provoke consumer cancellation fees constitutes platform manipulation. We audit schedule changes and may shut down accounts showing patterns of manipulation.

5. Health, safety, and material requirements

It is the sole responsibility of the consumer to review workshop parameters prior to booking.

- **Disclosures.** Notify the Vendor directly in advance of any allergies, physical limitations, or medical situations (respiratory sensitivities near kilns, mobility needs, ingredient restrictions) that could affect your safety during a workshop.
- **Liability limitations.** Neither offhrs nor the hosting Vendor shall be held responsible for medical developments, property damage, or injuries resulting from a consumer's failure to disclose a health condition or check workshop suitability before the class begins.

6. Access restrictions and account suspension

offhrs reserves the right to limit, suspend, or revoke access without notice if:

- A user shows an abnormal pattern of chargebacks, payment failures, or last-minute cancellations;
- Our fraud systems flag the account interactions or billing signatures as high-risk;
- You engage in abusive, inappropriate, or discriminatory behaviour toward our team or any Vendor staff member; or
- You attempt to scrape application assets, extract scheduling-engine architecture, or bypass the platform payment flow to complete a booking or purchase off-platform (this does not apply to Linked listings, which are completed on the Vendor's own site by design).

7. Limitation of liability & indemnification

- **Uptime boundaries.** We cannot guarantee continuous, error-free operation of our scheduling engine or network routing. Access may be temporarily limited for code updates or database maintenance.

- **Event disruption.** offhrs is not legally responsible for class cancellations caused by studio failures, instructor availability, or weather events in the Greater Toronto Area.
- **Marketplace goods.** offhrs does not make, own, inspect, or ship Marketplace goods and is not responsible for their quality, safety, condition, or description, or for delay, loss, or damage in carrier transit, except as set out in Section 3.5 and the Marketplace Seller Addendum. Those matters are between you, the Vendor, and (for transit) the carrier.
- **Liability cap.** To the absolute limit permitted under Ontario law, offhrs' total financial liability to any user for any system error is capped at the greater of (a) the total amount you paid through the Platform (including to offhrs as the Vendor's limited commercial agent) over the immediate ninety (90) days preceding the claim and (b) CAD $100. This cap does not apply to liability for our own fraud, gross negligence, or wilful misconduct.
- **Consumer rights.** Nothing in these Service Terms limits rights that cannot be waived or limited under the *Consumer Protection Act, 2002* (Ontario) or other applicable law, including any cancellation and refund rights that apply to internet agreements.
- **Indemnity.** You agree to protect, defend, and hold harmless offhrs from any third-party claims, losses, damages, or liabilities (including legal fees) resulting from your misuse of the platform, violation of these Terms, or physical actions during a marketplace workshop.

8. Governing law & local jurisdiction

These Service Terms are governed by the laws of the Province of Ontario and the federal laws of Canada applicable therein. Any formal disagreements or legal proceedings must be handled within the courts located in Toronto, Ontario.

9. Resolution support

If you are unhappy with a workshop experience, we want to know so we can keep the marketplace standard high. First, communicate directly with the studio owner to find an alignment or organize an alternative date. If you cannot reach a fair agreement, email our team at hello@offhrs.app. While we are not legally obligated to issue refunds for a Vendor's class, we review escalations on a case-by-case basis to help maintain a great experience for everyone. For Marketplace Orders, contact the Vendor first where you can and follow the claim steps in Section 3.5.